

26STCV14988 26STCV14988

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-01

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Case Number: 26STCV14988 Hearing Date: September 1, 2026 Dept: 529

CREDITORS

ADJUSTMENT BUREAU, INC., vs GREEN GARDEN, INC., et al.

motion to strike answer

Date of Hearing: September

1, 2026 Trial Date: None

set.

Department: 529 Case

No.: 26STCV14988

Moving Party: Plaintiff

Creditors Adjustment Bureau, Inc.

Responding Party: No

opposition.

BACKGROUND

On May 11, 2026, Plaintiff Creditors

Adjustment Bureau, Inc. filed a complaint against Green Garden, Inc. aka Green

Garden Inc., George Chavez aka George Medina Chavez aka George M Chavez for breach of contract and personal guaranty.

[Tentative] Ruling

Plaintiff's

Motion to Strike is GRANTED.

DISCUSSION

Plaintiff moves the court for an order striking the answer of Defendant Green Garden, Inc. aka Green Garden Inc. on the grounds that Defendant is a corporation and is attempting to appear in this action in propria persona in violation of the laws of the state of California and therefore, the court must strike Defendant's answer.

"[U]nder a long-standing common law rule of procedure, a corporation [or a limited liability company], unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) The rationale for this rule is that "a corporation, as an artificial entity created by law, can only act in its affairs through its natural person agents and representatives. If the corporate agent who would likely appear on behalf of the corporation in court proceedings, e.g., an officer or director, is not an attorney, that person would be engaged in the unlicensed practice of law." (Id. at p. 1146.) For this reason, a corporation nor a limited liability company cannot file a pleading in propria persona. ٪٪

On July 14, 2025, Defendant Green Garden, Inc. aka George Medina Chavez filed an answer in properia persona. Because a corporation may not represent itself, the court grants Plaintiff's motion to strike. A court may strike out all or any part of any answer or pleading not drawn or filed in conformity with the laws of this state. (CCP § 436(b).)

Based on the foregoing, Plaintiff's Motion to Strike Answer is GRANTED WITH LEAVE TO AMEND. The court notes "it is more appropriate and just to treat a corporation's [or an LLC's] failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court" and for this reason, the court grants the motion with leave to amend. (CLD Construction, Inc., supra, 120 Cal.App.4th at p. 1149.) "[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within

reasonable time. (Id. at p. 1150.)

The court gives Defendant 60 days leave to seek representation from licensed counsel, otherwise, the court will enter default against Defendant.